Mr Dimelow

Current legislation:

Health and Safety

Topic	What students need to learn:
10 Current Legislation	10.1 From the consumer's point of view the implications of consumer rights legislation to consumers and manufacturers: a) Consumer Rights Act (2015) b) Sale of Goods Act (1979)

10.1 Consumer Rights Legislation

- When products are manufactured for sale, there are standards and legislation manufacturers must comply with to ensure goods are safe for the user and fit for purpose.
- The consumer has a right to expect a safe product and are entitled to get their money back if goods are found to be faulty or do not perform as the manufacturer claims.

Exam Tip

- Make sure that you know how consumers are protected: the specific act or legislation and describe its purpose.

Consumer Rights Act (2015)

- This legislation is designed to safeguard consumers from faulty products by giving them certain rights.
- The Act also includes rights on the purchase of digital content, combines legislation from other previous Acts and replaces the Sale of Goods Act (1979).

Consumer Rights Act (2015)

PART 1 concerns consumer contracts for goods, digital content and services.	▪ Goods to be of satisfactory quality. ▪ Goods to be fit for the particular purpose. ▪ Goods to be as described and to match a model seen or examined. ▪ Right to reject goods and right to repair or replacement. ▪ Digital content including paid and free software. ▪ Digital content to be of satisfactory quality. ▪ Digital content to be fit for particular purpose. ▪ Digital content to be as described. ▪ Compensation for damage to device or to other digital content. ▪ Remedy for damage to device or to other digital content.

Consumer Rights Act (2015)

PART 2 Unfair terms	▪ **Requirement for contract terms and notices to be fair for any goods or service.** ▪ **Requirement for transparency of fees and services.**
PART 3 Concerns other miscellaneous provisions such as letting agencies	▪ Part 3 is not concerned with Product Design.

Sale of Goods Act (1979)

The ***Sale of Goods Act (1979)*** remains the primary piece of legislation regulating the selling and buying of goods.

The Act states that:

- Goods bought and sold in the UK have a price which when paid, transfers the goods from seller to buyer.
- There must be a satisfactory level of quality for the price to be paid.

Sale of Goods Act (1979)

The Act states that:

- The product must meet the description and meet the expectation, for example, the buyer of a second-hand bicycle should not expect a brand new product.
- Goods must be fit for purpose.
- Consumers are entitled to a free refund, replacement or repair service if the goods are found to be faulty.

Typical Mistakes…

Getting the Acts mixed up or forgetting to include the year. Always give the full title and year in an exam response:

- *The Consumer Rights Act (2015)*
- *The Sale of Goods Act (1979)*

Now Test Yourself…

1. What is the Consumer Rights Act (2015)?
2. Under the Consumer Rights Act (2015), list two expectations a consumer is entitled to have when buying a product.
3. Under the Consumer Rights Act (2015) and the Sale of Goods Act (1979), what right does a consumer have if they buy a product which is NOT described?
4. What is the Sale of Goods Act (1979)?